

HEALTH AND SAFETY CODE
TITLE 3. VITAL STATISTICS
CHAPTER 193. DEATH RECORDS

Sec. 193.001. FORM OF CERTIFICATE. (a) The department shall prescribe the form and contents of death certificates and fetal death certificates.

(a-1) In prescribing each form under Subsection (a), the department shall ensure that the form instructs the person required to file the death certificate or fetal death certificate to:

(1) enter the date in the standard order of "month, day, year"; and

(2) spell out the name of the month when entering the date.

(b) The social security number shall be recorded on the death certificate and on any other records related to the death.

(c) The department shall require death certificates and fetal death certificates to include the name of the place and the specific number of the plot, crypt, lawn crypt, or niche in which a decedent's remains will be interred or, if the remains will not be interred, the place and manner of other disposition.

(c-1) The department shall require death certificates to include the county where the decedent died and the decedent's county of last legal residence.

(d) The department and each local registrar shall make the information provided under Subsection (c) available to the public and may collect a fee in an amount prescribed under Section 191.0045 for providing that service.

Acts 1989, 71st Leg., ch. 678, Sec. 1, eff. Sept. 1, 1989.

Amended by Acts 1995, 74th Leg., ch. 502, Sec. 2, eff. Sept. 1, 1995; Acts 1999, 76th Leg., ch. 556, Sec. 73, eff. Sept. 1, 1999.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 557 (H.B. [2940](#)), Sec. 1, eff. June 17, 2011.

Acts 2015, 84th Leg., R.S., Ch. 1 (S.B. [219](#)), Sec. 3.0556, eff. April 2, 2015.

Acts 2023, 88th Leg., R.S., Ch. 1074 (S.B. [545](#)), Sec. 2, eff. September 1, 2023.

Sec. 193.002. PERSON REQUIRED TO FILE. The person in charge of interment or in charge of removal of a body from a registration district for disposition shall:

(1) obtain and file the death certificate or fetal death certificate;

(2) enter on the certificate the information relating to disposition of the body;

(3) sign the certificate; and

(4) file the certificate electronically as specified by the state registrar.

Acts 1989, 71st Leg., ch. 678, Sec. 1, eff. Sept. 1, 1989.

Amended by:

Acts 2007, 80th Leg., R.S., Ch. 302 (H.B. [1739](#)), Sec. 1, eff. September 1, 2007.

Sec. 193.0025. EXPEDITED DEATH CERTIFICATES FOR RELIGIOUS PURPOSES IN CERTAIN COUNTIES. (a) This section applies only to a county:

(1) with an office of medical examiner established in

accordance with Section 1, Article 49.25, Code of Criminal Procedure; and

(2) for which the commissioners court of the county by resolution elects for this section to apply.

(b) This section does not apply to a county that entered into an agreement with another county to create a medical examiners district under Section 1-a, Article 49.25, Code of Criminal Procedure, unless:

(1) the office of medical examiner is located in the county and the county has adopted a resolution described by Subsection (a)(2); or

(2) notwithstanding Subsection (a), the county elects for this section to apply in the agreement creating the district.

(c) An individual may submit to the person required to file a death certificate under Section 193.002 a written request for the person to expedite the completion of a decedent's death certificate if the requestor demonstrates that:

(1) the expedited completion is necessary for religious purposes;

(2) the decedent's remains will be interred, entombed, buried, cremated, or otherwise laid to rest in a foreign country; and

(3) the requestor is authorized to obtain a copy of the death certificate.

(d) A person who receives a request under Subsection (c) shall issue a copy of the decedent's death certificate to the requestor not later than 48 hours after the time the person receives the request unless an inquest will be conducted for the decedent.